

STATE OF NEW YORK

6845--B

2025-2026 Regular Sessions

IN SENATE

March 25, 2025

Introduced by Sen. KRUEGER -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring third-party food delivery services to verify that any limited-use motorcycle or motor vehicle operated by workers in the course of such delivery service is legally registered

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "moped
2 registration verification act".

3 § 2. Subdivision 1 of section 391-v of the general business law is
4 amended by adding a new paragraph (e) to read as follows:

5 (e) "Worker" means a natural person who is hired or retained as an
6 independent contractor by a delivery business to make deliveries in
7 exchange for compensation.

8 § 3. Section 391-v of the general business law is amended by adding a
9 new subdivision 3 to read as follows:

10 3. (a) A third-party food delivery service shall verify that any work-
11 er who elects to operate a limited-use motorcycle, as such term is
12 defined by section one hundred twenty-one-b of the vehicle and traffic
13 law, in the course of making deliveries for such third-party food deliv-
14 ery service has registered such limited-use motorcycle pursuant to
15 section twenty-two hundred sixty-one of the vehicle and traffic law or
16 registered pursuant to the applicable laws of another state.

17 (b) A third-party food delivery service shall verify that any worker
18 who elects to operate a motor vehicle, as such term is defined by

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 section one hundred twenty-five of the vehicle and traffic law, in the
2 course of making deliveries for such third-party food delivery service
3 has registered such motor vehicle pursuant to section four hundred one
4 of the vehicle and traffic law or registered pursuant to the applicable
5 laws of another state. A third-party food delivery service may satisfy
6 the requirements of this paragraph if, as a condition in its agreement
7 with the worker, the third-party delivery service shall require that the
8 worker has registered the motor vehicle the worker elects to operate in
9 the course of making deliveries for such third-party food delivery
10 service pursuant to the vehicle and traffic law or to the applicable
11 laws of another state.

12 (c) A third-party food delivery service shall record each such verifi-
13 cation required by paragraph (a) or (b) of this subdivision and retain
14 such record for at least one year following the termination of such
15 worker's employment by or engagement with such third-party food delivery
16 service.

17 (d) A third-party food delivery service shall not sell, share, or
18 allow access to such information collected and maintained pursuant to
19 this section unless required to comply with federal, state, or local
20 laws, rules, or regulations.

21 (e) Provided, however, that nothing contained in this subdivision
22 shall be deemed to supersede the provisions of article forty-four-b of
23 the vehicle and traffic law.

24 § 4. This act shall take effect on the one hundred eightieth day after
25 it shall have become a law.